Joint Standing Committee on Electoral Matters

ANSWER TO QUESTION ON NOTICE

Inquiry into the 2025 federal election

Agency: Australian Electoral Commission
Topic: Questions on notice arising from the public hearing of 15 October 2025
Asked by: James McGrath
Hearing date: 15 October 2025
Question number: 1-12
Type of question: Written
Number of pages: 28 pages

Question:

Influencer Authorisations

1. If a political party pays for a third party to place electoral matter on their own social media feed, should that content be authorised?
    a. If so, by whom?
2. Of the 1,020 breaches of authorisation requirements that were identified, how many resulted in:
    a. Enforcement action
    b. Formal warnings
    c. Referrals to other bodies
3. How many accounts or posts were removed by social media platforms following AEC contact?
4. How is "in-kind support" from influencers currently treated under disclosure rules, and what amendments would be necessary to close this loophole?
5. Has the AEC identified any coordinated influencer campaigns linked to registered parties or significant third parties?
6. When will updated determinations or guidance on influencer activity be finalised?

Political Advertising

1. Does the AEC track or log unauthorised online "news" outlets that distribute political messaging?
2. Has the AEC sought legal advice about "Gazette News"-style entities presenting as journalism?
3. Has the AEC asked any digital platform to remove non-authorised political content?
    a. If so, how many ads were reported to:
        i. Meta
        ii. Google
4. Has the AEC ever reviewed how much false or misleading content reached audiences before being removed?
5. Has the AEC engaged ACMA, ACCC or eSafety Commissioner on content-regulation overlaps?

Party Complaints

1. In your submission (p.2), you say there was around 2,200 complaints relating to political parties or conduct on polling booths. How often this was raised with political parties?

2. Were these complaints passed onto the relevant party on every relevant occasion?
    a. If not, why not?
3. If you have a situation on a polling booth where a volunteer in, say a purple shirt, is behaving inappropriately would the AEC contact the purple party and let them know there's a problem?
4. In your experience where you are raising things with party HQs are they dealt with?

Postal Votes

1. In your submission, you say there were around 670,000 postal vote applications through third parties both in paper and online form (p.4) and that you had around 260 complaints about party PVAs. Given the very low number of complaints in the scheme of applications, why is the AEC prioritising feedback from 260 people over the hundreds of thousands who are embracing the system?
2. Given that around 40% of the overall number of PVAs came through third parties, isn't there an argument that the party promotion of postal vote material is making voting more accessible?
3. Did the AEC contribute to the Privacy Act review that took place in the last term of Government?
4. Can we be provided with the age profile of people who applied for a PVA online vs on paper.

Freedom of Political Communication

1. There are a number of points made in the submission, in relation to exclusion zones outside polling booths and in relation to bulk text messages that are subject to the Constitution's requirements around freedom of political communication.
2. Has the AEC received or considered any legal advice on whether these proposals in your submission are legally sound?
3. I note that the AEC has previously advised that changes to the SPAM Act might not be achievable due to this, so I'm trying to understand if there has been a change in legal approach?
4. Why is the AEC putting forward proposals to this Committee that may not be sufficiently robust to withstand High Court challenge?

Authorisations

1. Of the 1,677 breaches of the authorisation requirements that you identified in the election, what is the number of those that are graduating to further action?
2. Is the AEC considering bringing any authorisation matters before the courts?
3. Your submission requests "clarifying and strengthening the investigatory powers of the AEC to enable the AEC to more quickly gather evidence and make timely regulatory decisions in the fast-paced electoral communications environment". Can you provide some more information on this?
4. In relation to your suggestion on updating authorisation requirements, would your suggestion be to have a universal use of the Short Authorisation?

Authorisation Warnings

Please provide a list of all entities that were issued formal warnings during the 2025 election relating to authorisation requirements. In each instance, did the entity:

a) Comply with the warning or make required changes.
b) Respond to the Australian Electoral Commission.
c) Is the AEC considering further action?

Future Elections Readiness

1. What testing or simulation exercises has the AEC planned to validate new systems before the next general election?
2. How is the AEC coordinating implementation across federal, state, and territory electoral commissions to maintain consistency?
3. Will the AEC provide Parliament with an interim progress report or public implementation roadmap?

Enforcement, Compliance, and Transparency

1. How will the AEC monitor and enforce compliance with the revised donation thresholds and reporting timelines?
2. How many additional staff or resources are being allocated to the Compliance and Investigations area to manage increased reporting volume?
3. Will the AEC publish compliance outcomes or data summaries in near real time?

Legislative and Policy Interface

1. Has the AEC provided the government with advice on any legislative gaps or technical amendments required for smooth implementation?
2. Has the AEC sought additional appropriations to implement the reform measures?

LLMs

1. Has the AEC used any large language models or AI systems internally, and are they air-gapped?
2. Has the AEC identified any unauthorised uploads of data to public LLMs or AI tools?

Pre-poll overseas votes

1. In relation to pre-poll overseas votes, please advise the number of people who voted at each post in-person, by post.

Answer:

These questions were answered through the Supplementary Budget Estimates 2025-26 process. Please refer to the corresponding Estimates responses attached.

Subject	Estimates QoN No.
Influencer Authorisations	F096
Political Advertising	F097
Party Complaints	F098
Postal Votes	F099
Freedom of Political Communication	F182
Authorisations	F183
Authorisation Warnings	F184
Future Elections Readiness	F185
Enforcement, Compliance, and Transparency	F186
Legislative and Policy Interface	F187
LLMs	F188
Pre-poll overseas votes	F189

Attachments

1. F096
2. F097
3. F098
4. F099
5. F182
6. F183
7. F184
8. F185
9. F186
10. F187
11. F188
12. F189

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Influencer Authorisations

Senator: James McGrath

Question reference number: F096
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 3

Question:

1. If a political party pays for a third party to place electoral matter on their own social media feed, should that content be authorised?
    a. If so, by whom?
2. Of the 1,020 breaches of authorisation requirements that the AEC identified during the 2025 election, how many resulted in:
    a. Enforcement action
    b. Formal warnings
    c. Referrals to other bodies?
3. How many accounts or posts were removed by social media platforms following AEC contact?
4. How is "in-kind support" from influencers currently treated under disclosure rules, and what amendments would be necessary to close this loophole?
5. Has the AEC identified any coordinated influencer campaigns linked to registered parties or significant third parties?
6. When will updated determinations or guidance on influencer activity be finalised?
7. Where an influencer is contracted by a political party or third party, and receives payments to produce content, how does the AEC assess whether their content constitutes electoral matter?
8. Where an influencer has no formal connection to a political party or third party, but receives payments from political actors or associated entities, how does the AEC assess whether their content constitutes electoral matter?
9. Would disclosure or authorisation requirements apply if an influencer receives in-kind support, such as free content production or campaign resources?
10. If an influencer posts material that expressly promotes or attacks a candidate or political party, is that automatically considered electoral matter, regardless of the format or style of the content? If not, in what circumstances would such material require an authorisation?

11. Has the AEC issued any guidance to influencers or content creators on how the definition of "electoral matter" applies to them?
12. Does the AEC distinguish between "pushed" advertising (such as paid social media ads) and "organic" influencer content in determining whether electoral authorisation and disclosure rules apply?
13. Has the AEC investigated any influencers or online personalities in relation to authorisation breaches or undeclared political advertising?
14. How many instances of influencer content were flagged or monitored as electoral matter during the 2022 and 2025 elections?

Answer:

1. This is appears to be a hypothetical policy question that is best deliberated by the Joint Standing Committee on Electoral Matters and considered by the Department of Finance and Government.

2. For the 1,020 social media communications the Australian Electoral Commission (AEC) reviewed that breached the *Commonwealth Electoral Act 1918* (the Electoral Act) in the 2025 federal election period, the AEC issued:

    a. 164 letters/emails to responsible entities identifying breachs and setting out required rectification actions;
    b. 13 letters/emails educating responsible entities about their obligations under the Electoral Act; and
    c. 18 referrals/requests for action to other bodies.

3. 38 accounts or posts were removed by social media platforms following AEC contact.

4. In-kind support received by any person or entity must be disclosed by the relevant reporting entity for an amount that reflects fair value for the item or service provided. The funding and disclosure requirements can apply differently depending on the circumstances: if a person or entity engages in electoral expenditure (i.e. electoral advertising over the disclosure threshold to influence voters), they will likely have a disclosure obligation under the Electoral Act; this person or entity may also have registration requirements under the Electoral Act (e.g. to register as an associated entity and/or Significant Third Party).Where a person/entity meets the requirements under the Electoral Act for authorisation of electoral communication, entity registration and financial disclosure, the person/entity must comply with the respective requirements.

5. During the 2025 federal election period the AEC observed the increased use of social media for campaigning. This included the use of social media influencers and electronic media outlets to influence voters. The AEC has not identified formal links or coordination between influencers and registered parties or significant third parties.

6. In the lead up to the 2025 federal election the AEC issued guidance on authorisations and content creators (April 2025). Refer www.aec.gov.au/FAQs/files/Authorisations-and-Content-Creators.pdf. This guidance, along with the AEC's other authorisation guidance is being reviewed and will be updated as appropriate to assist people and entities participating in elections. The AEC is also reviewing the Authorisation Determination with a view to consulting with political parties and other electoral participants in 2026.

7. This appears to be a hypothetical question. In the absence of any reform each instance of potential electoral matter is assessed against the meaning of electoral matter in section 4AA of the Electoral Act.

   Electoral matter is "matter communicated or intended to be communicated for the dominant purpose of influencing the way electors vote in an election (a federal election) of a Member of the House of Representatives or of Senators for a State or Territory". Section 4AA prescribes further criteria to assist determine if a matter is electoral matter. For electoral matter to require an authorisation it must then be communicated one of the ways specified in section 321D(1).

   On 7 April 2025, the AEC published guidance on its website titled 'Authorisations and content creators' which provided guidance to content creators on the authorisation requirements under section 321D of the Electoral Act, and included guidance about what factors the AEC considers in determining whether a communication contains electoral matter.

8. Please see answer to Question 7.

9. Please see answer to Question 7.

10. Please see answer to Question 7.

11. Please see answer to Question 7.

12. Electoral matter is assessed under section 4AA of the Electoral Act. Electoral matter is "matter communicated or intended to be communicated for the dominant purpose of influencing the way electors vote in an election (a federal election) of a Member of the House of Representatives or of Senators for a State or Territory". Section 4AA prescribes further criteria to assist determine if a matter is electoral matter. For electoral matter to require an authorisation it must then be communicated one of the ways specified in section 321D(1).

13. The AEC reviewed 18 complaints/referrals during the 2025 federal election period in relation to influencers and online personalities with respect to compliance with authorisation requirements.

Instances of influencer content reviewed or monitored	
2025 federal election period	2022 federal election period
18 complaints/referrals	4 complaints/referrals

14. Please see answer to Question 13.

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Political Advertising

Senator: James McGrath

Question reference number: F097
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 2

Question:

1. Does the AEC track or log unauthorised online "news" outlets that distribute political messaging?
2. Has the AEC sought legal advice about "Gazette News"-style entities presenting as journalism?
3. Has the AEC asked any digital platform to remove non-authorised political content?
    a. If so, how many ads were reported to:
        i. Meta
        ii. Google
4. Has the AEC ever reviewed how much false or misleading content reached audiences before being removed?
5. Has the AEC engaged ACMA, ACCC or eSafety Commissioner on content- regulation overlaps?

Answer:

1. During federal elections the Australian Electoral Commission (AEC) monitors online digital sites that are branded as news sites to assess whether they publish electoral matter that may not fall within the news and genuine editorial content exception in section 4AA(5)(a) of the *Commonwealth Electoral Act 1918*.

2. The AEC considers the application of the authorisation requirements to each communication or online site on a case-by-case basis and seeks external legal advice as required.

3. Where a notifying entity does not amend or remove an improperly authorised communication on a digital platform, the AEC can request the digital platform to block or remove improperly authorised content. The digital platforms will decide whether the

communication breaches the platform's referral policy. For authorisation matters at the 2025 federal election, the AEC reported:

- 53 communications to Meta, and
- 1 communication to Google.

4. The AEC does not have the powers or the resources to monitor or regulate false or misleading content.

5. Where regulation of political communication falls outside of the powers of the AEC (i.e. broadcast material) the AEC engages with other relevant content regulators.

Senate Finance and Public Administration Legislation Committee
ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Party Complaints

Senator: James McGrath

Question reference number: F098
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 2

Question:

1. The AEC has advised there were around 2,200 complaints relating to political parties or conduct on polling booths during the 2025 election. How often was this raised with political parties?

2. Were these complaints passed onto the relevant party on every relevant occasion?
    a. If not, why not?

3. If you have a situation on a polling booth where a volunteer in, say a purple shirt, is behaving inappropriately would the AEC contact the purple party and let them know there's a problem?

4. In your experience where you are raising things with party HQs are they dealt with?

Answer:

1. As outlined in the Australian Electoral Commission's (AEC) submission to the Joint Standing Committee on Electoral Matters inquiry into the 2025 federal election, complaints in the 'political party' category covered various activities by political parties and campaigners. The AEC receives both contemporaneous and retrospective complaints. The AEC's approach to complaints about contemporaneous conduct at polling booths is to resolve locally with those involved on a case-by-case basis. If necessary, the AEC may escalate to the candidate or candidate's campaign manager. If unresolved, complaints about political parties may be further escalated to state or national AEC executive for correspondence with the party contacts.

2. Noting the AEC's approach to complaints outlined in response to Question 1, these complaints were not passed onto the relevant party on every occasion.

3. If a situation arose as outlined in the question, the approach outlined in response to Question 1 would be followed.

4. Yes.

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Postal Votes

Senator: James McGrath

Question reference number: F099
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 2

Question:

1. The AEC has advised there were around 670,000 postal vote applications through third parties both in paper and online form and that you had around 260 complaints about party PVAs. Given the very low number of complaints in the scheme of applications, why is the AEC prioritising feedback from 260 people over the hundreds of thousands who are embracing the system?
2. Given that around 40% of the overall number of PVAs came through third parties, isn't there an argument that the party promotion of postal vote material is making voting more accessible?
3. Did the AEC contribute to the Privacy Act review that took place in the last term of Government?
4. Can we be provided with the age profile of people who applied for a PVA online vs on paper.

Answer:

1. The Australian Electoral Commission's (AEC) concerns with the current use of third party postal vote applications (PVAs) relate not only to complaints received, but to the elector confusion caused, privacy concerns and disenfranchisement risk (both due to some people believing they have applied when they have just completed a party online component, and the risk of people not receiving their postal vote in time to vote).

2. The AEC already has a wide range of voting options that electors can use to access the service that best meets their requirements. Postal vote applications are accessible through the AEC via:

    - AEC website
    - phoning the AEC to be sent an email or paper copy of the PVA

- AEC offices
- community engagement initiatives
- General Postal Voter provisions.

Applying directly with the AEC, and return of paper PVAs directly to the AEC, is the most expedient way for voters to apply for a postal vote as it avoids double handling.

The AEC also seeks to encourage voters to vote in-person wherever possible, which in turn maximises their chance of casting a formal vote, and enables the AEC to count the vote as quickly as possible after close of polling.

3. The Attorney-General's Department consulted the AEC on the Privacy Act Review in 2021.

4. Online versus paper application method by Age Category:

PVA by age profile online vs paper*		
Age Category	**OPVA****	**Paper**
<18	70	386
18-29	264398	20763
30-39	307540	29018
40-49	265494	35828
50-59	275804	52240
60-69	257738	82491
70-79	170740	107660
80-89	90121	83593
90-99	25525	20079
100+	800	810

**Note table does not include registered General Postal Voters and applications submitted without a date of birth.*
***Online Postal Vote Application*

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Freedom of Political Communication

Senator: James McGrath

Question reference number: F182
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 2

Question:

1. The AEC has suggested there should potentially be changes to regulations relating to exclusion zones outside polling booths and bulk text messages that are subject to the Constitution's requirements around freedom of political communication. Has the AEC received or considered any legal advice on whether such changes are legally sound?
2. The AEC has previously advised that changes to the SPAM Act might not be achievable due to legal hurdles. Has there been a change in legal approach in relation to this?
3. Why is the AEC putting forward proposals to this Committee that may not be sufficiently robust to withstand High Court challenge?

Answer:

1. The Australian Electoral Commission (AEC) has highlighted some different approaches taken by other states to regulating the environment outside polling places in our submission to the Joint Standing Committee on Electoral Matters (JSCEM) inquiry into the 2025 federal election. The submission also notes that any consideration of those or similar measures for federal elections would need to be mindful of the implied freedom of political communication in the Constitution. The obtaining of legal advice on such matters would be a matter for the Department of Finance and is best done once a policy position has been formed, which should be informed by JSCEM deliberations and recommendations and the Government's response.

2. The AEC notes in our JSCEM submission that any changes to the *Spam Act 2003* would need to be mindful of the implied freedom of political communication in the Constitution.

3. The AEC has not proposed or endorsed legislative changes. Depending on the ultimate policy position formed by government on legislative issues, the Parliament can pass

laws, informed by legal advice, that does not impinge the implied freedom of political communication.

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Authorisations

Senator: James McGrath

Question reference number: F183
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 2

Question:

1. Of the 1,677 breaches of the authorisation requirements that you identified in the election, what is the number of those that are graduating to further action?
2. Is the AEC considering bringing any authorisation matters before the courts?
3. The AEC has stated: "clarifying and strengthening the investigatory powers of the AEC to enable the AEC to more quickly gather evidence and make timely regulatory decisions in the fast-paced electoral communications environment". Can you provide some more information on this?
4. In relation to AEC suggestions on updating authorisation requirements, would your suggestion be to have a universal use of the Short Authorisation?

Answer:

1. Of the 1,677 authorisations breaches identified, the Australian Electoral Commission (AEC) appropriately managed all of the identified breaches during the election with further action being considered for six remaining matters.

2. On 2 October 2025 the AEC commenced civil proceedings against Mr Jarrod Davis for the failure to authorise approximately 47,000 flyers containing electoral matter, printed for distribution in the Division of Wentworth. That matter is ongoing. It is not appropriate at this stage to comment further on this matter or other potential litigation.

3. Since the enactment of the *Electoral and Other Legislation Amendment Act 2017,* the digital landscape and the way in which it is used for campaigning has evolved. The AEC's submission to the Joint Standing Committee on Electoral Matters (JSCEM) inquiry into the 2025 federal election outlines regulatory challenges and issues where the AEC would welcome discussion and consideration of potential reform. For example,

potential reform to enable the AEC to issue infringement notices under the *Regulatory Powers (Standard Provisions) Act 2014*, as an alternate to civil proceedings.

4. The AEC welcomes amendments to the authorisation requirements that will improve transparency around who is responsible for the communication of electoral matter and the best method for all political participants to utilise that has the right balance between transparency, compliance and regulatory impact. These are ultimately decisions for the Parliament.

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Authorisation Warnings

Senator: James McGrath

Question reference number: F184
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 1

Question:

Please provide a list of all entities that were issued formal warnings during the 2025 election relating to authorisation requirements. In each instance, did the entity:

a) Comply with the warning or make required changes.
b) Respond to the Australian Electoral Commission.
c) Is the AEC considering further action?

Answer:

Following a federal election, the Australian Electoral Commission (AEC) publishes data on regulatory actions on the AEC website at www.aec.gov.au/about_aec/compliance.htm. Processing of authorisation matters reviewed during the 2025 federal election is ongoing and this data will be published on the AEC website when the process is complete.

The AEC also reports on authorisation complaints and breaches in the 2025 Federal Election Report at www.aec.gov.au/Elections/federal_elections/2025/index.htm, and at a higher level in the AEC's Annual Report. See the AEC 2024-25 Annual Report for the most recent reporting, published at www.aec.gov.au/About_AEC/Publications/annual-report/ and on the Australian Government's Transparency Portal, www.transparency.gov.au/portfolio-entities-companies/finance/australian-electoral-commission.

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Future Elections Readiness

Senator: James McGrath

Question reference number: F185
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 2

Question:

1. What testing or simulation exercises has the AEC planned to validate new systems before the next general election?
2. How is the AEC coordinating implementation across federal, state, and territory electoral commissions to maintain consistency?
3. Will the AEC provide Parliament with an interim progress report or public implementation roadmap?

Answer:

1. The Australian Electoral Commission (AEC) is implementing new Information and Communication Technology (ICT) systems and processes to support legislative changes before the next federal election that impact the Commonwealth funding and disclosure scheme under Part XX of the *Commonwealth Electoral Act 1918* (the Electoral Act).

   The AEC has a well-defined ICT software development lifecycle (SDLC) based on industry best-practice and lessons learned from planning and delivering elections and managing the funding and disclosure scheme.

   The AEC's SDLC involves three distinct phases where the end-to-end efficacy of our ICT solutions are rigorously tested and validated:

   - User acceptance testing – This testing is where both AEC and external stakeholders are engaged to use the funding and disclosures systems and services and assess their suitability for use within their organisational context.
   - Production Verification Testing – This testing is where the end-to-end funding and disclosures solution is subject to full data, security, and integration

compatibility testing involving other AEC enterprise systems, and external stakeholder systems.

- Production shakedown testing – This testing is where the solution is subject to an end-to-end simulation of a live funding and disclosure cycle involving compliance actions, investigations, and enforcements.

The AEC is implementing the new ICT systems and processes in line with whole of Australian government requirements and standards including the Digital Transformation Agency's Digital Experience Policy.

2. The AEC engages with state and territory electoral management bodies on a broad range of matters relating to elections through existing forums. This includes discussion of the administration of funding and disclosure schemes across states and territories as well as their experiences in implementing changes to their schemes. The legislative changes relate to Commonwealth funding and disclosure and do not impact state and territory electoral management bodies.

3. These legislative changes impact the Australian public and disclosure entities and the AEC. The AEC is undertaking extensive preparations and will communicate with impacted disclosure entities and provide guidance and support leading up to, and following, commencement (1 July 2026) of the scheme. Information on the changes to the scheme as well as education materials for stakeholders are published on the AEC website at www.aec.gov.au/FADReform/.

   The AEC provides Parliament with updates through annual reports. Reports meet the requirements of the *Commonwealth Electoral Act 1918*, the *Public Governance, Performance and Accountability Act 2013*, and the *Public Governance, Performance and Accountability Rule 2014* for annual reports.

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Enforcement, Compliance, and Transparency

Senator: James McGrath

Question reference number: F186
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 1

Question:

1. How will the AEC monitor and enforce compliance with the revised donation thresholds and reporting timelines?
2. How many additional staff or resources are being allocated to the Compliance and Investigations area to manage increased reporting volume?
3. Will the AEC publish compliance outcomes or data summaries in near real time?

Answer:

1. Following the reform to electoral laws through the *Electoral Legislation Amendment (Electoral Reform) Act 2025* the Australian Electoral Commission (AEC) is refining its regulatory posture. This includes prioritising education and engagement to foster a culture of compliance, and our monitoring and enforcement activities. Further information on monitoring and enforcement arrangements will be made available in 2026.

2. The workforce model is expected to be finalised in early 2026, with further staff recruitment to occur before 1 July 2026. This will ensure the AEC has the right number of trained staff, with the capacity and capability needed to support stakeholders effectively and deliver timely regulatory outcomes.

3. Compliance outcomes for the Funding and Disclosure Scheme are not subject to publication or time period requirements under the *Commonwealth Electoral Act 1918* (the Electoral Act). The AEC will publish donation disclosure notice information on the Transparency Register within timeframes prescribed by the Electoral Act as amended.

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Legislative and Policy Interface

Senator: James McGrath

Question reference number: F187
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 1

Question:

1. Has the AEC provided the government with advice on any legislative gaps or technical amendments required for smooth implementation?
2. Has the AEC sought additional appropriations to implement the reform measures?

Answer:

1. The Australian Electoral Commission (AEC) has engaged with the Government on the proposed legislative changes.

2. The Government provided the AEC funding to implement and administer legislative amendments in the 2024-25 Mid-Year Economic and Fiscal Outlook (MYEFO) through the measure Reforming the Commonwealth Funding and Disclosure Scheme.

Senate Finance and Public Administration Legislation Committee

ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: LLMs

Senator: James McGrath

Question reference number: F188
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 2

Question:

1. Has the AEC used any large language models or AI systems internally, and are they air-gapped?
2. Has the AEC identified any unauthorised uploads of data to public LLMs or AI tools?

Answer:

1. The Australian Electoral Commission (AEC) Artificial Intelligence (AI) transparency statement, outlining our approach to AI adoption and use, is available on the AEC website at www.aec.gov.au/About_AEC/Publications/files/AEC-AI-Transparency-Statement.pdf.

   The AEC does not operate any air-gapped Large Language Models (LLMs) or AI systems internally. All AI capabilities in-use are delivered via third-party service providers.

   Commonly used AI tools at the AEC include:
   - Microsoft 365 Copilot (licensed version) – trial underway
   - Github Copilot – in-use for technical staff
   - Delphi, the AEC service centre virtual assistant
   - assistive and adaptive technologies (e.g. Nuance Dragon Professional).

   The AEC is compliant with the Protective Security Policy Framework (PSPF) Direction 001-2025: DeepSeek Products, Applications and Web Services. DeepSeek is blocked and not accessible from the AEC network, and relevant AEC policies specifically prohibit DeepSeek on AEC devices.

From time to time, the AEC – using a non-standard operating device – will assess the outputs of widely used chatbots to understand the information that is being provided about Australian electoral processes. This use is consistent with the AEC's Use of Artificial Intelligence Policy.

The AEC's Use of Artificial Intelligence Policy provides guidance to all staff on how to use AI safely and responsibly at work. The Policy is aligned with the AEC's Reputation Management System and aims to help staff reduce the potential risks to electoral integrity associated with using AI. Consistent with the Policy, staff using AI for their work must do so in accordance with the eight principles from Australia's AI Ethics Framework.

2. The AEC has not detected any unauthorised uploads of data to public LLMs or AI Tools.

Senate Finance and Public Administration Legislation Committee
ANSWERS TO QUESTIONS ON NOTICE
SUPPLEMENTARY BUDGET ESTIMATES 2025-26

Finance Portfolio
7-8 October 2025

Department/Agency: Australian Electoral Commission
Outcome/Program: Outcome 1
Topic: Pre-poll overseas votes

Senator: James McGrath

Question reference number: F189
Type of question: Written
Date set by the committee for the return of answer: 28 November 2025

Number of pages: 4

Question:

In relation to pre-poll overseas votes, please advise the number of people who voted at each post in-person, by post.

Answer:

Working with the Department of Foreign Affairs and Trade and Austrade, the Australian Electoral Commission (AEC) provided in-person and postal voting services to Australians living, working or travelling overseas.

Eligible Australians overseas at the time of the election were able to vote in-person at one of 111 overseas posts in 81 countries in the two weeks prior to election day. These locations also acted as a postal vote collection centre.

The number of people who voted at each post in person, and postal votes received by post, are available on the AEC website at www.aec.gov.au/election/fe25/downloads-statistics.htm and provided below.

Overseas voting centre	Pre-poll (in-person) votes issued at post	Postal vote envelopes received at post	Total votes
Abu Dhabi	199	27	226
Abuja	15	2	17
Accra	38	0	38
Addis Ababa	52	0	52
Alofi	7	0	7
Amman	184	11	195
Ankara	64	10	74

Overseas voting centre	Pre-poll (in-person) votes issued at post	Postal vote envelopes received at post	Total votes
Apia	157	4	161
Athens	499	40	539
Auckland	1,338	249	1,587
Bali	1,016	23	1,039
Bandar Seri Begawan	48	5	53
Bangkok	1,571	260	1,831
Beijing	811	72	883
Belgrade	172	22	194
Bengaluru	310	66	376
Berlin	1,259	441	1,700
Bern	141	92	233
Bogota	149	32	181
Brasilia	23	6	29
Brussels	280	69	349
Buenos Aires	157	8	165
Cairo	124	3	127
Chengdu	110	14	124
Chennai	254	46	300
Chicago	255	202	457
Colombo	707	67	774
Copenhagen	690	121	811
Dhaka	276	7	283
Dili	212	1	213
Doha	172	20	192
Dubai	601	51	652
Dublin	817	140	957
Frankfurt	186	179	365
Geneva	297	152	449
Guangzhou	1,030	66	1,096
Hanoi	647	31	678
Harare	71	4	75
Ho Chi Minh City	1,695	76	1,771
Hong Kong	3,830	509	4,339
Honiara	191	10	201
Honolulu	515	85	600
Houston	163	241	404
Istanbul	274	11	285
Jakarta	535	70	605
Kathmandu	337	4	341
Kolkata	55	6	61
Koror	19	0	19
Kuala Lumpur	724	128	852
Kuwait	36	4	40
Lae	50	4	54
Lima	171	6	177

Overseas voting centre	Pre-poll (in-person) votes issued at post	Postal vote envelopes received at post	Total votes
Lisbon	515	45	560
London	13,118	2,629	15,747
Los Angeles	501	292	793
Madrid	542	269	811
Majuro	14	1	15
Makassar	10	1	11
Male	19	0	19
Malta	275	7	282
Manila	1,005	101	1,106
Mexico City	211	12	223
Milan	416	73	489
Mumbai	202	57	259
Nairobi	141	6	147
Nauru	71	0	71
New Delhi	382	109	491
New York	2,625	557	3,182
Nicosia	90	9	99
Noumea	42	5	47
Nuku'alofa	88	5	93
Osaka	683	111	794
Ottawa	118	119	237
Papeete	30	0	30
Paris	1,575	468	2,043
Phnom Penh	854	11	865
Phuket	241	24	265
Pohnpei	12	0	12
Port Louis	175	11	186
Port Moresby	629	7	636
Port of Spain	7	0	7
Port Vila	234	0	234
Prague	144	28	172
Pretoria	132	40	172
Rabat	56	1	57
Rarotonga	54	0	54
Riyadh	121	24	145
Rome	668	170	838
San Francisco	565	377	942
Santiago	174	12	186
Sao Paulo	63	8	71
Seoul	731	84	815
Shanghai	1,542	111	1,653
Singapore	2,030	374	2,404
Stockholm	420	190	610
Surabaya	40	10	50
Suva	399	14	413

Overseas voting centre	Pre-poll (in-person) votes issued at post	Postal vote envelopes received at post	Total votes
Taipei	939	148	1,087
Tarawa	27	0	27
Tel Aviv	499	26	525
The Hague	740	390	1,130
Tokyo	1,606	271	1,877
Toronto	433	152	585
Ulaanbaatar	52	1	53
Vancouver	740	323	1,063
Vienna	545	120	665
Vientiane	169	8	177
Warsaw	196	55	251
Washington	795	455	1,250
Wellington	469	102	571
Zagreb	154	11	165
Grand total	**62,862**	**12,131**	**74,993**